IN THE COUNTY COURT AT LINCOLN

Claim number: 019JE538

BETWEEN:

MSEM UK LTD (Claimant)

and

FISHBONE CONSTRUCTION LTD (Defendant and Claimant on the counterclaim)

WITNESS STATEMENT OF ANDREJUS PRUTKOVAS

Director of the Defendant. First statement.

References to exhibits MG15 and MG16 are to the exhibits to the witness statement of Mindaugas Gaudiesius.

1. My name is Andrejus Prutkovas. I am a director of Fishbone Construction Ltd, the Defendant in these proceedings. My business address is 6 Beverley Place, Wallsend, NE28 7BH.

2. Mindaugas Gaudiesius is my business partner. I was involved in the BBC Central Square project in Cardiff and I make this statement on behalf of Fishbone Construction Ltd.

3. I make this statement from my own recollection unless I say otherwise. Where information comes from another person or a record, I say so. I prepared it from answers I gave to written questions, with help in editing the English, and I have checked the contents before signing.

Visits on 2 and 3 February 2026

4. On 2 February 2026, I travelled to Cardiff with Mindaugas Gaudiesius. We did not attend the BBC Central Square site that day. We stayed overnight at a Travelodge hotel.

5. On 3 February 2026, we attended BBC Central Square. Mikheil Davidans and two other workers were present.

6. I observed that some wall panels were missing, plumbing work was incomplete, skirting boards had not been installed, and some repairs to the ceiling were required. We returned home on 3 February.

7. I was at home between 5 and 8 February 2026.

Visit and labour discussions on 9 February 2026

8. On 9 February 2026, I attended BBC Central Square again with Mindaugas Gaudiesius. Mikheil Davidans and two other workers were present.

9. Compared with my visit on 3 February, I observed only limited progress. Some wall panels, doors and skirting boards were still missing, and painting work had not been completed.

10. During that visit, Mindaugas and I met Mikheil in the BBC café. We discussed progress on the project. Mikheil asked for additional labour, and we agreed to arrange three additional workers for the following day.

11. The three workers arranged were Dainius, Alex and Raitis. We returned home on 9 February. I was at home on 10 February and did not witness the workers arriving on

site. Mikheil subsequently confirmed to me that they had attended, although I do not remember exactly how that confirmation was communicated.

Events on 12 to 14 February 2026

12. On 12 February 2026, I was at home. I did not attend the site or personally witness the planned handover.

13. We used separate Telegram groups for our projects. Mikheil Davidans was a member of the BBC Central Square project group.

14. On 12 February, I received a snagging list from the client and posted the PDF in that Telegram group. Mindaugas has identified the time of my post in the Telegram record as 16:07 (exhibit MG15). I cannot say whether Mikheil read the document.

15. My O2 telephone records, as described to me by Mindaugas, show a call to Mikheil at 16:29 on 12 February (exhibit MG16). I do not remember what was discussed.

16. On 13 February 2026, I was in London with Mindaugas Gaudiesius. During a telephone call with Dainius Drulia, we discussed how to improve the quality of the work and deal with problems on the project. Mindaugas has identified a call to Dainius from my phone at 14:17.

17. Separately, on 13 February, Dainius sent me a text message saying that Mikheil had left the site. He did not give a reason for Mikheil leaving. I learned of his departure from that message, not from the telephone call.

18. Mikheil did not personally inform me that he was leaving the project. I did not instruct him to leave or go home. I am not aware of Mindaugas instructing him to leave.

19. I did not travel to Cardiff or attend BBC Central Square on 14 February 2026. I do not remember the purpose of the London hotel booking for 13 February referred to in the questions sent to me.

Site meeting on 17 February 2026

20. On 17 February 2026, I travelled to Cardiff with Mindaugas Gaudiesius. This was my first visit to Cardiff since 9 February. We attended the BBC Central Square site and met Dave Macdonald, David Newell and Liam Price.

21. Dainius, Sebastian and Anton were also at the site. I saw them replacing skirting boards and repairing some panels. Mikheil was not present.

22. At the meeting, Dave Macdonald, David Newell and Liam Price expressed dissatisfaction with the quality of the work. The main complaints I remember concerned large gaps between panels, skirting boards that had not been cut at 45-degree angles, and problems with shadow-gap detailing.

23. At that meeting, we were given a further eight days to rectify the defects and make good the outstanding work.

Remedial works and what I was told

24. Following the meeting on 17 February, remedial works were carried out.

25. Dainius subsequently informed me that the remedial works had been completed within the additional eight-day period and that he had shown the completed work to

Liam Price, who was on site for the client.

26. I did not personally witness Liam inspecting the completed work. I do not remember exactly when or how Dainius gave me that information. My understanding that the remedial works were completed on time is based on what Dainius told me.

Other communications and records

27. I do not recall discussing whether additional labour was needed with Mikheil between 30 January and 6 February 2026. I understand from the O2 records identified by Mindaugas that my phone made a call to Mikheil at 09:45 on 4 February, lasting approximately four minutes (exhibit MG16), but I do not remember what we discussed.

28. Mindaugas has also identified calls from my phone to Mikheil at 13:02 on 9 January, 08:05 on 23 January, 09:28 on 26 January, and 14:27, 14:38 and 18:19 on 10 February 2026 (exhibit MG16). I do not remember what was discussed during those calls.

29. I do not remember Mikheil calling me on or around 6 February 2026.

30. Before 9 February 2026, I did not see messages from Mikheil in the BBC Central Square Telegram group reporting that the work was falling behind, complaining about quality issues or asking for more labour. This does not mean I can confirm that no such messages existed.

31. I do not remember whether I had any contact with Mikheil by telephone or message after 13 February 2026, including on 22 or 27 February.

Statement of truth

I believe that the facts stated in this witness statement are true. I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

Signed: _____

Andrejus Prutkovas

Date: _____